

Form No. HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. **Writ Petition No.55131 of 2023**

Muhammad Ijaz Munir Vs **Add. Sessions Judge, etc.**

Sr. No.	Date of order	Order with signature of Judge, and that of parties or counsel, where necessary.
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01.10.2025 Mr. Muhammad Hanif Khan, Advocate for the petitioner.
Mr. Muhammad Idrees Rafique Bhatti, Assistant Advocate General, Punjab alongwith Nawaz, A.S.I. and record of the case.

Through instant petition, **Muhammad Ijaz Munir** (petitioner) has challenged the *vires* of order dated: 19.06.2023 passed by learned Additional Sessions Judge, Sheikhpura/trial court, whereby Binyameen, Bilal Hafeez, Hafiz Rafique, Zakir Ali, Mubasher Ahmad, Akbar Ali son of Muhammad Ali, Akber Ali son of Ashraf Ali and Mushtaq Ahmad (accused persons/now arrayed as respondents No.3 to 10 in this petition) have been discharged from the case arising out of F.I.R. No.933/2022 dated: 16.08.2022 registered under Sections: 462-B and 506-B PPC at Police Station: Saddar Sheikhpura; copy of impugned order is available at page No.13 of this petition and relevant portion from the same is hereby reproduced as under:-

“Accused persons Binyameen, Bilal Hafeez, Hafiz Rafique, Zakir Ali, Mubasher Ali, Mushtaq Ahmad, Akber Ali s/o Muhammad Ali and Akber Ali s/o Ashraf are absent.

2. Perusal of report u/s 173 Cr.P.C. reveals the names of accused persons Binyameen, Bilal Hafeez, Hafiz Rafique, Zakir Ali, Mubasher Ali, Mushtaq Ahmad, Akber Ali s/o Muhammad Ali and Akber Ali s/o Ashraf mentioned in column No.2 with blue ink as during investigation the accused have been held not involved in the commission of offence charged against them.”

“3. As per FIR no one of the accused nominated as culprit was arrested at the spot nor any source of their identification is shown to substantiate the allegation against them. Police investigated the accused persons named in column No.2 of report u/s 173 Cr.P.C. recorded their version and have found them not involved in the occurrence of this case as such their names are placed with blue ink in column No.2 of the report u/s 173 Cr.P.C. while the prosecution branch has also not differed with said findings of police and it has been opined by prosecution that there is least chance of conviction of above said accused persons. Resultantly having no incriminating material against accused persons namely Binyameen, Bilal Hafeez, Hafiz Rafique, Zakir Ali, Mubasher Ali, Mushtaq Ahmad, Akber Ali s/o Muhammad Ali and Akber Ali s/o Ashraf mentioned in column No.2 of the report u/s 173 Cr.P.C. I have no reason to proceed for trial of this cast against them.”

2. Learned counsel for the petitioner submits that trial court cannot discharge the accused persons from the case, therefore, impugned order is against the law and same is not sustainable; finally prays for acceptance of instant petition as well as setting-aside the impugned order.

3. Learned Assistant Advocate General, Punjab while supporting the impugned order, under instructions of the police official and after going through the record produced today before the Court by aforementioned police official, submits that though statements of the witnesses were recorded in this case yet none of them has seen the accused persons (respondents, mentioned above) while committing the alleged offence, hence, no material is available on the record against them and thus it has rightly been observed by the trial court that there is no reason to proceed with trial of this case against the accused and resultantly, they have rightly been discharged from this case.

4. Arguments heard. Record appended with this petition as well as produced today by aforementioned police official has been perused.

5. It is relevant to mention here that in the cases triable by Courts of Session, charge is framed against the accused under Section: 265-D Cr.P.C., which is hereby reproduced for ready reference:-

“265-D. *When charge is to be framed. If, after perusing the police report or, as the case may be, the complaint, and all other documents and statements filed by the prosecution, the Court is of opinion that there is ground for proceeding with the trial of the accused it shall frame in writing a charge against the accused.*”

Perusal of Section 265-D Cr.P.C. reveals that if after perusing the police report or the complaint, all other documents and statements filed by the prosecution, the Court is of the opinion that there is ground for proceeding with the trial of the accused, it shall frame the charge in writing against the accused. Now question does arise that if after perusing aforementioned report, complaint, documents as well as statements, the Court comes to the conclusion that there is no ground for proceeding with the trial of the accused, then what option remains left with the trial court and whether even then, it will frame charge

against the accused? Answer is very simple that in such state of affairs, charge will not be framed against the accused rather he will be discharged from the case and said power is inherent in the trial court; in this regard, case of “**CHIEF EHTESAB COMMISSIONER, CHIEF EHTESAB COMMISSIONER’S SECRETARIAT, ISLAMABAD versus AFTAB AHMAD KHAN SHERPAO, EX-CHIEF MINISTER, N.W.F.P. Peshawar and others** (PLD 2005 Supreme Court 408) can be advantageously referred. When in instant case, no material is available on the record to implicate the accused (respondents mentioned above) regarding commission of the alleged offence (as confirmed above by learned Assistant Advocate General, Punjab), then in such state of affairs, trial court was quite competent to discharge the accused persons under Section: 265-D Cr.P.C.

Therefore, impugned order, which is even otherwise well-reasoned and conclusion arrived at in the same is perfectly in accordance with law, needs no interference by this Court. It goes without saying that in the case of “**FAROOQ HUSSAIN and others Versus SHEIKH AFTAB AHMAD and others**” (PLD 2020 Supreme Court 617), it has been clearly observed that if the Court having examined the decision challenged before it, is satisfied with its reasoning and conclusions and is of the view that it does not call for any interference, then Court can simply endorse the impugned decision and adopt the reasoning of the court below; relevant portion of said order is hereby reproduced: -

“It is emphasized that if this Court, having examined the judgment challenged before it, is satisfied with its reasoning and conclusions and is of the view that it does not call for any interference, this Court can simply endorse the impugned judgment and adopt the reasoning of the court below. In such a case, re-tracing the same path travelled by the court below appears to be an unnecessary exercise and a waste of public time-time which can be allocated to other cases where the decisions of the courts below have been overturned or modified. Finding no reversible error in the judgment, a concise, simple order can suffice. On the other hand, if the Court is to reverse or modify the judgment of the court below, the reasons for the reversal or modification must be set forth.

3. *This approach adopted by the court, is by no means a short-cut which is offensive to fair trial under Article 10-A of the Constitution nor does it in any manner undermine due process and fair-play. It is simply a creative way forward that spares the Court from writing opinions where a mere adoption of a well-reasoned judgment of the court below through a short order serves the purpose adequately.”*

6. In view of what has been discussed above, instant petition is without merit/substance and is hereby **dismissed** *in limine*.

(Farooq Haider)
Judge

Approved for reporting.

(Farooq Haider)
Judge

This order has been dictated,
pronounced, prepared and signed
on 01.10.2025.

Khalid